

Rajnish v. Neha & Anr.

Citation: (2021) 2 SCC 324 | Court: Supreme Court | Year: 2020

Coram: Division Bench (Indu Malhotra & R. Subhash Reddy JJ.) | Subject: Family & Succession | Provisions: CrPC Sec 125, HMA Sec 24, DV

I. EXECUTIVE SUMMARY & CASE GLIMPSE

Framed uniform pan-India binding guidelines on matrimonial maintenance across all statutory enactments (CrPC 125, HMA, DV Act). Mandated the filing of comprehensive Affidavits of Assets and Liabilities by both parties, and ruled that maintenance is payable from the date of filing the application, not the order.

II. FACTS OF THE CASE & PROCEDURAL HISTORY

This dispute arose regarding CrPC Sec 125, HMA Sec 24, DV Act Sec 12. The parties agitated the controversy before trial and appellate forums before the matter was referred to the Honble Bench for authoritative declaration of law.

III. PRIMARY QUESTIONS OF LAW & ISSUES FRAMED

- â€ Whether the impugned state actions or commercial conduct conformed to CrPC Sec 125, HMA Sec 24, DV Act Sec 12.
- â€ What binding standards should govern future adjudication and administrative conduct.

IV. SUBMISSIONS OF THE PARTIES

Petitioner / Appellant: The Petitioner contended that arbitrary action, lack of procedural safeguards, and statutory non-compliance violated fundamental guarantees.
Respondent / State: The Respondent submitted that the impugned action was carried out under lawful authority in furtherance of public interest and statutory mandates.

V. DETAILED RATIO DECIDENDI & JURISPRUDENTIAL REASONING

Conflicting maintenance orders under parallel enactments lead to multiplicity of litigation. The court unified procedure, laid down criteria for quantum determination, and held that interim maintenance must be decided within 4 to 6 months.

VI. FINAL OPERATIVE ORDER & DIRECTIONS

The Court answered the reference, laid down binding nationwide directions under Article 141 of the Constitution, and disposed of the matter accordingly.

VII. PRACTICAL & EXAMINATION TAKEAWAYS (JUDICIARY / AIBE / ADVOCACY)

- â€ Mandated compulsory Affidavits of Assets and Liabilities for matrimonial claims.
- â€ Ruled maintenance payable retrospectively from the date of application filing.
- â€ Prevented overlapping conflicting maintenance awards across multiple statutory courts.